

The Warehousing Development and Regulatory Authority (Meetings) Regulations, 2012

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The Warehousing Development and Regulatory Authority (Meetings) Regulations, 2012

Rule THE-WAREHOUSING-DEVELOPMENT-AND-REGULATORY-AUTHORITY-MEETINGS-REGULATIONS-2012 of 2012

Published on 14 March 2012

Commenced on 14 March 2012

[This is the version of this document from 14 March 2012.]

[Note: The original publication document is not available and this content could not be verified.]

The Warehousing Development and Regulatory Authority (Meetings) Regulations, 2012

Published vide Notification New Delhi, the 14th March, 2012

Ministry of Consumer Affairs, Food And Public Distribution

(Department of Food and Public Distribution)

G.S.R. 147(E). - In exercise of the powers conferred by clause (f) of sub-section (2) of section 51 read with sub-section (1) of section 31 of the Warehousing (Development and Regulation) Act, 2007, (37 of 2007) the Warehousing Development and Regulatory Authority in consultation with the Warehousing Advisory Committee and with the previous approval of the, Central Government, hereby makes the following regulations, namely :-

1.

Short title, extent and commencement

. - (1) These regulations may be called The Warehousing Development and Regulatory Authority (Meetings) Regulations, 2012.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires,-

(i)

"Act" means the Warehousing (Development and Regulation) Act, 2007 (

37 of 2007

).

(ii)

"Authority" means the Warehousing Development and Regulatory Authority established under section 24 of the Act.

(iii)

"Chairperson" means a person appointed as Chairperson of the Authority under section 25 of the Act.

(iv)

"Committee" means every committee formed by general or special order in writing by the Authority.

(v)

"member" means a member of the Authority and includes the Chairperson.

(vi)

"Registrar" means any officer of the Authority charged with the duty and responsibility of issuance of notice, Circulation of agenda, recording, circulation and safe-keeping of minutes of the meetings of the Authority or any Committee thereof.

2. Word expression used in these regulation and not defined herein but assigned to them in the Act shall have the same meanings respectively.

3.

Meeting of the Authority for transaction of business and procedure to be followed.

(1)

The Authority may meet for the transaction of business, adjourn and otherwise regulate its meeting as provided in these regulations.

(2)

The Authority shall meet, as often as may be necessary but not less than four times in a year, to transact its business.

(3)

The meetings of the Authority shall normally be held at its head office but whenever circumstances render it expedient to hold a meeting else where, the same may be so held at any other place in India.

(4)

The Chairperson and in his absence, the senior most member of the Authority authorised by the Chairperson shall fix the date, time and place of meetings of the Authority and approve the items of agenda for the meetings.

(5)

The notice and agenda for the meeting shall normally be circulated three days in advance by the Registrar.

(6)

The notice and agenda may be delivered to the members personally upon acknowledgement or transmitted through any secured and reliable modem tools of communication as may be recognised under any law for the time being in force: Provided that if an emergency meeting of the Authority is required to be convened, three days notice may not be required.

(7)

An item not included in the agenda of a meeting of the Authority may be taken up for consideration with the permission of the Chairperson, or in his absence, the presiding member.

4.

Quorum

. - Two members of the Authority shall constitute the quorum for the transaction of business at a meeting of the Authority.

5.

Minutes of the Meeting

. - (1) The Registrar shall record, at the earliest (within three working days) on conclusion of every meeting, the minutes of all proceedings at the meeting of the Authority and after obtaining the approval of the Chairperson or the presiding member, as the case may be, enter the minutes book kept for that purpose.

(2)

The minutes of each meeting shall contain the correct summary of the decisions arrived at the meeting.

(3)

The minutes shall also contain -

(i)

the names of the members present at the meeting; and

(ii)

in the case of each decision taken at the meeting, the names of the members, if any, dissenting from or not concurring with the decision taken.

(4)

Minutes of the meetings kept as directed by the Authority and shall be evidence of the proceedings recorded therein.

(5)

The Registrar shall after the approval of the minutes of the meeting by the Chairperson or the presiding member, as the case may be, send a copy of the minutes as entered in the minutes book to every member of the Authority for his information.

(6)

The Registrar shall also communicate, with the approval of the Chairperson or the presiding member, the relevant extracts of the decision taken at the meeting of the Authority or any of its Committees to all concerned for necessary follow-up action and monitor their compliance by evolving a suitable reporting system. Periodical reports on follow-up action shall be submitted to the Authority.

6.

Invitees at meeting

. - (1) Any person whose presence at a meeting is desired for his advice or consultation, may be invited to attend the meeting by the Chairperson or the senior most member authorised by the Chairperson.

(2)

The expenses towards travel and daily allowance of the official invitees in connection with the meetings of the Authority shall be borne by their respective Ministry or Department.

(3)

In the case of non-official invitees, expenditure towards their travel and daily allowance shall be met by the Warehousing Development and Regulatory Authority as admissible to Grade I officers of the Government of India.

7.

Miscellaneous provisions

. - (1) The Chairperson may attend any committee meeting as ex officio member and whenever the Chairperson attends any committee meeting, he shall preside over that meeting.

(2)

No official, other than the Chairperson or a person specifically authorised by him, shall give information to the press or any other public media on matters relating to the working of the Authority and decisions taken in the meeting.

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